

Court No. - 32

Case :- WRIT - C No. - 10010 of 2019

Petitioner :- Vidya Devi

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Joveen Kumar

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pradeep Kumar Srivastava,J.

This writ petition has been filed, inter alia, for the following reliefs:

"I. Issue a writ, order or direction in the nature of Certiorari quashing the Electricity Bill cum Disconnection Notice dated 06.12.2018 issued from the office of respondent no. 2 (Annexure No. 3 to this writ petition).

(II) Issue a writ, order or direction in the nature of mandamus directing the respondent authorities to reconsider the grievance of the petitioner by reassessment of Electricity Bill cum Disconnection Notice dated 06.12.2018 and fresh arrears of Electricity Bill may be provided to the petitioner.

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within a period of 30 days from today, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 60 days, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 29.3.2019/vinay